

The Criminal Law (Tamil Nadu Amendment) Act, 1997

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State of Tamilnadu- Act

The Criminal Law (Tamil Nadu Amendment) Act, 1997

TAMILNADU

India

The Criminal Law (Tamil Nadu Amendment) Act, 1997

Act 47 of 1997

Published on 11 August 1997

Commenced on 11 August 1997

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The Criminal Law (Tamil Nadu Amendment) Act, 1997

Tamil Nadu Act

47 of 1997

Statement of Objects and Reasons. - In the Criminal Law Amendment Ordinance, 1944 (Central Ordinance XXXVIII of 1944), in the Schedule, item 2 provides for the attachment of the property of a person who has committed an offence under section 406 or section 408 or section 409 of the Indian Penal Code (Central Act XLV of 1860) in respect of the properties entrusted by Central or State Government, or any local authority. Item 4 of the Schedule provides for attachment of the property of a person who has committed an offence under section 417 or 420 of the Indian Penal Code (Central Act XLV of 1860), against a person who is in the Central or State Governments or in a local authority.

2. Now the Government have decided to enlarge the scope of the said Ordinance so as to attach any property of any person who has committed the offence under the said sections 405, 408, 409, 417 or 420 of the Indian Penal Code

(Central Act XLV of 1860).

3. The Bill seeks to give effect to the above decision.

Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, dated the 22nd April 1997.

Received the assent of the President on the 11th August 1997 and published in Part IV-Section 2 of the Tamil Nadu Government Gazette Extraordinary, dated the 12th August 1997.

An Act to amend the Criminal Law Amendment Ordinance, 1944, in its application to the State of Tamil Nadu.

Be it enacted by the Legislative Assembly of the State of Tamil Nadu in the Forty-eighth year of the Republic of India as follows:-

1.

Short title, extent and commencement.

(1)

This Act may be called the Criminal Law (Tamil Nadu Amendment) Act, 1997.

(2)

It extends to the whole of the State of Tamil Nadu.

(3)

It shall come into force at once.

2.

Amendment of Central Ordinance XXXVIII of 1944.

- In the Schedule to the Criminal Law Amendment Ordinance, 1944 (Central Ordinance XXVIII of 1944),-

(1)

in item 2, the expression beginning with the words "where the property" and ending with the words "department or authority" shall be omitted.

(2)

in item 4, the expression beginning with the words "where the person" and ending with the words "department or authority" shall be omitted.

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